CLIENT COOPERATION AND PROPERTY PARTICIPATION FRAMEWORK AGREEMENT

Effective Date: _____ | **Agreement ID:** BW-AGR-_____

This draft is a framework only. It is not an offering memorandum, subscription agreement, deed, title instrument, brokerage agreement, tax opinion, or guarantee of income. No property participation becomes binding until the parties execute a property-specific addendum and all compliance checks are completed.

1. Parties

Company	**[INSERT FULL LEGAL ENTITY NAME AND ENTITY TYPE]**, trading under the Brickwise / Fractional Real Estate brand ("Company").
Registered details	Registration No.: _____; Jurisdiction: _____; Registered Office: _____.
Business address	370 NE 75th Street, Unit 126, Miami, Florida 33138, United States.
Client	Full Legal Name: _____; Date of Birth/Formation: _____; Address: _____; Email: _____ ("Client").

The Company and Client are each a "Party" and together the "Parties." The Client confirms that all information supplied during onboarding is complete, current, and accurate.

2. Purpose and scope

2.1 This Agreement establishes the administrative and commercial process through which the Client may review property opportunities made available through the Brickwise client portal, submit non-binding expressions of interest, request a specified number of participation units or "shares," complete verification, fund an approved transaction, receive reports, and, where applicable, receive distributions attributable to a property participation.

2.2 The portal is an information and workflow tool. Displaying a property, calculation, yield, share count, payment option, or status does not itself constitute acceptance of an investment, transfer of legal title, creation of a trust, custody relationship, deposit account, or obligation to distribute income.

2.3 Each approved transaction must be documented by a **Property Participation Addendum** identifying the property, legal holding structure, issuer or owner, participation rights, price, fees, risks, transfer restrictions, distribution policy, term, and applicable offering exemption or registration basis, if any.

3. Key definitions

Available Cash means cash actually received from a property after permitted reserves, costs, taxes, debt service, fees, refunds, chargebacks, and other liabilities. **Gross Property Revenue** means rent and other property receipts actually collected. **Net Distributable Income** means Available Cash approved for distribution. **Projection** means a forward-looking estimate based on assumptions and not a promise. **Share** means the contractual or entity interest described in the relevant Addendum and does not necessarily mean direct ownership recorded on the real-estate title.

4. Cooperation workflow

Step 1 — Account creation and identity

The Client creates a personal account, verifies the email address, uses a secure password, and completes the profile. The Client may not share access credentials or allow another person to transact through the account.

Step 2 — KYC, eligibility, and source of funds

Before approval, the Company may request government identification, proof of address, tax residence, beneficial ownership information, sanctions and politically exposed person screening, accreditation or suitability information where legally required, bank or wallet ownership evidence, and documents reasonably necessary to assess source of funds. The Company may pause, reject, or report activity where required by law.

Step 3 — Property review

The Client reviews the property page and supporting materials, including location, condition, valuation basis, acquisition structure, occupancy, rent assumptions, operating budget, financing, insurance, taxes, reserves, fees, risks, expected holding period, and exit assumptions. The Client must ask questions and obtain independent advice before proceeding.

Step 4 — Modelling shares and benefits

The portal may allow the Client to select a number of shares and view daily, weekly, monthly, and annual illustrations. These figures are mathematical presentations of the same underlying annual projection. They do not mean that income accrues or is paid every day or week.

Step 5 — Purchase request

The Client submits a non-binding request identifying the property, number of shares, proposed amount, preferred payment method, and payout preference. The Company checks availability, compliance, the applicable transaction structure, and any investor limits. A portal status such as “new,” “pending,” or “agent review” is not acceptance.

Step 6 — Property-specific disclosure and acceptance

If the request may proceed, the Company supplies the Addendum and relevant disclosure materials. The Client accepts only by signing the Addendum and any required subscription, entity, escrow, tax, or risk documents. If terms conflict, the property-specific documents govern for that transaction.

Step 7 — Funding

After acceptance, the Company provides verified bank or digital-asset instructions. The Client must independently confirm the beneficiary, token, network, reference, and amount. Funds sent before written approval, to an incorrect network, or from a third party may be rejected or delayed.

Step 8 — Allocation and confirmation

Allocation occurs only after cleared funds, completed documentation, compliance approval, and written confirmation. The Company then records the participation in the appropriate register or ledger and provides a transaction confirmation.

Step 9 — Ongoing administration

The Company or identified property manager administers reporting, expense accounting, reserves, and distributions as stated in the Addendum. Material events may include vacancy, repairs, insurance claims, refinancing, legal proceedings, sale proposals, or changes in regulation.

Step 10 — Exit or transfer

A participation may be illiquid. Transfer, redemption, repurchase, or sale is available only if the Addendum permits it, applicable law allows it, required approvals are obtained, and a buyer or liquidity source exists. No secondary market or exit date is guaranteed.

5. Property participation and financial model

5.1 The legal and economic nature of a Share must be stated in the Addendum. Depending on the approved structure, a Share may represent an interest in a special-purpose entity, a contractual participation right, or another permitted instrument. Unless expressly stated in a signed deed or Addendum, the Client is not registered as a direct co-owner on the property title and has no right to occupy, lease, manage, mortgage, or encumber the property.

5.2 Share availability is limited. Shares displayed as available may be reserved, blocked, cancelled, repriced, or withdrawn before final allocation. The Company may decline or reduce a request without creating liability, subject to refunding cleared funds that are not allocated, less only lawful and previously disclosed charges.

6. Revenue, costs, and Net Distributable Income

Property cash flow may include collected rent, permitted service income, insurance proceeds, and sale or refinancing proceeds. Before calculating Net Distributable Income, the property or holding structure may deduct:

- property management, leasing, cleaning, utilities, maintenance, repairs, capital expenditure, furnishing, and security;
- insurance, property tax, association charges, permits, licenses, professional fees, banking costs, and payment-processing costs;
- mortgage principal and interest, lender reserves, financing charges, and hedging or currency-conversion costs;
- Company administration or platform fees expressly disclosed in the Addendum;
- vacancy, bad debt, refunds, chargebacks, litigation, compliance expenses, and prudent operating or capital reserves; and
- tax withholding or other deductions required by law.

Net Distributable Income = Cash Actually Collected − Approved Property Costs − Debt Service − Taxes/Withholding − Fees − Reserves

Client Distribution = Net Distributable Income × Client's Applicable Participation Percentage

Where shares have different classes, dates, preferences, or rights, the calculation follows the signed Addendum rather than a simple pro-rata percentage.

7. Daily, weekly, monthly, and annual illustrations

7.1 Portal illustrations may be derived as follows:

Illustrated Monthly Amount = Illustrated Annual Amount ÷ 12
Illustrated Weekly Amount = Illustrated Annual Amount ÷ 52
Illustrated Daily Amount = Illustrated Annual Amount ÷ 365

7.2 These conversions are display conveniences only. They are not account balances, interest, wages, rent owed directly to the Client, guaranteed returns, or promises of payment frequency. Actual results depend on cash collected and actual expenses and may be lower, delayed, zero, or negative.

7.3 Unless an Addendum states otherwise, distributions are considered no more frequently than monthly and may be paid quarterly or retained as reserves. No distribution is due merely because the portal displays a daily, weekly, monthly, or annual estimate.

7.4 Appreciation and sale proceeds are uncertain. Any illustrated property-value growth is separate from rental cash flow and is realized only if a transaction occurs at a sufficient net price.

8. Payments, digital assets, and custody boundaries

8.1 The Client may fund an approved transaction by verified wire transfer or an approved digital asset and network shown in written instructions. The Company does not request private keys, seed phrases, banking passwords, or remote access to the Client's device.

8.2 For digital assets, the Client bears network selection, address-entry, exchange, gas, and blockchain-finality risks. Sending an unsupported asset or using an incorrect network may cause permanent loss. A blockchain transaction hash proves network transmission but does not by itself prove contractual allocation.

8.3 Digital-asset amounts may be converted or valued at the time and source described in the Addendum. Volatility, depegging, congestion, sanctions screening, custody delays, or exchange restrictions may delay or prevent acceptance. Refunds, if permitted, may be made in fiat value rather than the original token and may be reduced by unavoidable network or conversion costs disclosed to the Client.

8.4 The Company must keep client transaction records separate from its ordinary operational accounting to the extent required by the applicable structure and law. The Addendum must identify any escrow agent, custodian, property-owning entity, bank, wallet arrangement, or third-party processor relevant to the transaction.

9. Reporting and records

The Client portal may show requests, allocated shares, modelled values, payment instructions, and statuses. The Company will use commercially reasonable efforts to provide periodic property updates and annual information reasonably available for tax reporting. Portal availability is not guaranteed, and official signed confirmations and underlying entity records control in case of discrepancy.

The Client must promptly review statements and notify the Company of an alleged error. The Company may correct clerical, mathematical, pricing, or allocation errors and will provide an explanation where the correction materially affects the Client.

10. Taxes and independent advice

The Client is responsible for obtaining independent legal, tax, accounting, immigration, securities, and financial advice. Cross-border ownership or payments may create reporting, withholding, foreign-asset, estate, transfer, income, capital-gains, sales, or other tax obligations. The Company does not determine the Client's personal tax treatment and may withhold amounts where required.

11. Client acknowledgements

The Client acknowledges that:

- real estate and fractional interests are speculative, illiquid, and may result in partial or total loss;
- past performance, valuations, rental history, target yield, and projections do not predict future results;
- vacancy, tenant default, damage, disaster, uninsured loss, financing, interest rates, regulation, taxes, currency, fraud, cyber events, and market conditions may materially reduce value or income;
- the Client can bear the investment's risks and has not relied on oral promises or undisclosed guarantees;
- no government agency has approved the merits of a property merely because a filing, exemption, or registration may apply; and
- the Client will invest only after reviewing the complete property-specific documents.

12. Company duties and limitations

The Company will act in good faith in administering its stated workflow, safeguard personal information using reasonable measures, maintain transaction records, disclose material fees known at the time of an approved transaction, and avoid knowingly presenting projections as guarantees. The Company does not guarantee tenants, occupancy, valuation, financing, liquidity, exchange rates, platform availability, distributions, or return of capital.

To the maximum extent permitted by law, neither Party is liable for indirect, incidental, special, exemplary, or consequential loss arising from this Agreement. Nothing excludes liability that cannot lawfully be excluded, including liability for fraud, intentional misconduct, or rights that applicable securities or consumer law makes non-waivable.

13. Term, suspension, and termination

This Agreement begins on the Effective Date and continues until terminated by either Party on written notice. The Company may immediately suspend portal access or transaction processing for suspected fraud, sanctions concerns, inaccurate information, security events, legal requirements, misuse, or material breach.

Termination stops new requests but does not automatically cancel an existing property participation. Existing rights and obligations continue under the applicable Addendum until transfer, redemption, liquidation, or other completion. Payment, confidentiality, records, tax, risk, limitation, dispute, and governing-law provisions survive termination.

14. Privacy, confidentiality, and communications

The Company may process identity, contact, compliance, transaction, payment, wallet, tax, and document data to administer the relationship, prevent fraud, meet legal duties, and communicate with the Client. Information may be shared with professional advisers, banks, payment processors, custodians, property managers, identity providers, regulators, and authorities where reasonably necessary or legally required.

Official notices may be delivered to the portal or the latest verified email or postal address. The Client consents to electronic records but may request information about available non-electronic procedures. Marketing consent is separate and is not a condition of this Agreement.

15. Representations

Each Party represents that it has capacity and authority to enter this Agreement. The Client further represents that funds are lawfully owned or controlled, participation is not for money laundering or evasion, supplied documents are authentic, and execution does not violate another agreement or applicable law.

16. Governing law and disputes

This Agreement is governed by the laws of the State of Florida, without regard to conflict-of-law rules, subject to mandatory federal law and non-waivable protections of the Client's jurisdiction. Before commencing proceedings, the Parties will attempt in good faith for 30 days to resolve a written dispute through management discussion or mediation.

Forum and arbitration selection must be completed by Florida counsel: [INSERT COURT VENUE OR VALID ARBITRATION CLAUSE, INCLUDING REQUIRED CONSUMER/SECURITIES DISCLOSURES]. No provision waives a right or remedy that applicable securities law makes non-waivable.

17. General provisions

This Agreement, the Privacy Policy, and signed Addenda constitute the relevant agreement between the Parties. Amendments must be in writing. Invalid provisions are severed to the minimum extent necessary. Failure to enforce is not waiver. The Client may not assign rights without written approval; Company assignment is subject to law and preservation of Client rights. Counterparts and electronic signatures are permitted. English controls unless a signed translation expressly states otherwise.

18. Execution and electronic consent

By signing below, each Party confirms that it has read, understood, and voluntarily accepted this Agreement. The Parties agree to conduct this transaction by electronic means and agree that electronic signatures and electronically stored counterparts may be used to the extent permitted by applicable law.

FOR THE COMPANY
[FULL LEGAL ENTITY NAME]

Authorized Representative — Full Name

Title / Authority

Signature

Date and Time (with time zone)



CLIENT

Full Legal Name

Residential Address

Email Address

Signature

Date and Time (with time zone)

19. Document verification record

Agreement ID	BW-AGR-_____
Document version	1.0 — Draft pending legal approval
Issued timestamp	_____ (UTC)
SHA-256 document hash	_____
Verification URL / QR	https://www.brickwise-immo.de/verify/_____

20. Optional notary acknowledgment

This section may be completed only by a duly commissioned notary where notarization is legally required or voluntarily selected. The Brickwise corporate seal is not a notarial seal.

State of _____ County of _____

The foregoing instrument was acknowledged before me on _____ by _____, who is personally known to me or produced _____ as identification.

Notary Public Signature

Commission Number

Printed Name

Commission Expiration

NOTARY SEAL AREA

COUNSEL CHECKLIST BEFORE USE: insert exact legal entity and registration details; confirm securities offering/registration or exemption; confirm holding structure and custody; approve fees, disclosures, venue and dispute clause; prepare the Property Participation Addendum; review privacy, AML/KYC, tax, consumer, sanctions, and cross-border requirements.